

25NNCV06445 25NNCV06445

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Case Number: 25NNCV06445 Hearing Date: August 7, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION, SET ONE and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiff Adolfo Galvez ("Plaintiff") brings this employment action against Defendant Inline Translation Services, Inc. ("Defendant"), asserting causes of action for (1) Disability Discrimination, (2) Failure to Provide Reasonable Accommodation, (3) Failure to Engage in the Interactive Process, and (4) Wrongful Termination in Violation of Public Policy. Plaintiff alleges Defendant discriminated against him based on a disability and terminated his employment after failing to accommodate his condition.

On May 6, 2026, Defendant filed three motions to compel further responses, with requests for monetary sanctions, to Requests for Production ("RFP"), Special Interrogatories ("SPROGs"), and Form Interrogatories ("FROGs"), Set One. The Court addresses each motion below. Plaintiff filed oppositions on July 27, 2026, and Defendant filed replies on July 31, 2026.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

SPROGS, Set One

SPROGS Nos 1-12:

This set of requests seek information regarding Plaintiff's post-termination job search, prospective employers, offers of employment, subsequent employment, and efforts to mitigate damages.

The Court finds the requested information relevant to Plaintiff's claims for lost wages and Defendant's mitigation defense. The Court is not persuaded that Plaintiff's overbreadth and privacy objections preclude discovery. The interrogatories seek business contact information for prospective and subsequent employers, which does not implicate a sufficient privacy interest to outweigh Defendant's need for discovery. Plaintiff argues the interrogatories improperly seek personal contact information of non-parties. (Opposition., pp. 4-5.) However, Plaintiff cites no authority demonstrating that the business contact information sought is protected from discovery or otherwise not discoverable under the circumstances presented. Plaintiff also represents that he intends to serve supplemental responses. However, the promise of future supplementation does not render the motion moot.

Thus, Plaintiff shall serve verified, code-compliant further responses, without objection, within 30 days.

SPROGS Nos 13-16:

This set of requests seek information regarding Plaintiff's medical and mental health providers and treatment for the depression and other conditions Plaintiff alleges constitute the basis for his disability discrimination and failure to accommodate claims.

However, the Court agrees with Plaintiff that, as drafted, the interrogatories are not reasonably limited to the relevant time period and instead seek Plaintiff's entire pre-termination treatment history without any temporal limitation tied to the claims at issue. (Opposition., p. 5.)

The Court GRANTS the motion in part. Plaintiff shall serve verified further responses identifying medical and mental health providers and treatment relating to the conditions placed at issue for the time period commencing one year prior to Plaintiff's termination to the present..

FROGS Set one

FROGS Nos. 6.4–6.6; 9.1–9.2; 10.1–10.2

This set of requests seek information regarding Plaintiff's medical and mental health conditions, treatment, and damages arising from the conditions Plaintiff alleges form the basis of his disability discrimination and failure to accommodate claims. The Court finds the requested information relevant because Plaintiff has placed his medical condition at issue in this action. However, the Court agrees with Plaintiff that discovery is appropriately limited to the conditions and treatment relevant to the claims asserted and the applicable time period. To the extent Plaintiff's supplemental responses remain incomplete regarding treatment for conditions allegedly exacerbated by the conduct at issue or damages sought, further responses are required, limited to the time frame set forth above..

The Court GRANTS in part. Plaintiff shall serve verified further responses consistent with the scope of the waiver resulting from the claims asserted in this action.

FROG No. 8.8

This request seeks Plaintiff's estimate of future lost income. Plaintiff's claim that discovery is ongoing does not excuse providing the information presently available. Plaintiff is required to provide the best estimate reasonably available at the time of the response and supplement if additional information becomes available.

Thus, the Court GRANTS to compel further FROG No. 8.8.

FROGs Nos. 12.1 and 17.1

These requests seek the identity of witnesses and persons with knowledge supporting Plaintiff's claims and responses. Plaintiff's supplemental responses refer generally to "current and former employees" but do not identify those individuals by name. The Court finds the responses incomplete.

Thus, the Court GRANTS the motion as to FROGS Nos. 12.1 and 17.1. Plaintiff shall provide verified, code-compliant further responses identifying all responsive witnesses known at this time.

RFPs, Set One

RFP Nos 1-4:

This set of requests seeks documents supporting the factual allegations underlying Plaintiff's disability discrimination, failure to accommodate, and wrongful termination claims. Plaintiff represents that it would serve amended responses and produce responsive, non-privileged documents to each request before the hearing on the instant motion. (Thomas Decl., ¶ 8.) However, Defendant represents that, as of the filing of the reply, no such production had occurred. Plaintiff does not dispute that the requested documents are discoverable and, in fact, agreed to supplement its responses and produce responsive, non-privileged documents.

Thus, the Court GRANTS the motion to compel further RFP Nos 1-4. Plaintiff shall serve verified, code-compliant further responses and provide a privilege log for any documents withheld on the basis of privilege within 30 days.

Monetary sanctions.

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

Defendant seeks monetary sanctions totaling \$7,080, consisting of \$1,560 for the RFP motion (Aroustamian Decl. (RFP), ¶ 5), \$2,460 for the FROGs motion (Aroustamian Decl. (FROGs), ¶ 5), and \$3,060 for the SPROGS motion (Aroustamian Decl. (SPROGs), ¶ 5).

Plaintiff opposes sanctions, arguing the motions became unnecessary because Plaintiff intended to serve supplemental responses and produce responsive documents before the hearing, and that Plaintiff's objections were substantially justified.

The Court finds monetary sanctions are warranted. Defendant was required to file the instant motions after Plaintiff served objection-only responses, and despite Plaintiff's representation that it would supplement its discovery responses, the record reflects that the outstanding deficiencies had not been resolved by the time the replies were filed. Therefore, Defendant incurred fees and costs that would not have been necessary had responses been provided.

However, because the three motions involve overlapping factual and legal issues, and Plaintiff did serve supplemental responses addressing at least some of the deficiencies after the motions were filed, the Court finds the amount requested excessive. The Court therefore reduces the requested attorney's fees to a total of five hours at counsel's hourly rate of \$600, plus the \$60 filing fee for each of the three motions.

Based on the foregoing, the Court awards monetary sanctions against Plaintiff and Plaintiff's counsel, jointly and severally, in the amount of \$3,180.00 (\$3,000 in attorney's fees plus \$180 in filing fees).

IV. CONCLUSION

The Court GRANTS Defendant's motions to compel further SPROGS, FROGS and RFP , Set One. Defendant shall provide code-complaint responses within 30 days' notice of this order.

The Court further GRANTS Defendant's request for monetary sanctions, but in the reduced amount of \$3,180.00, against Plaintiff and Plaintiff's counsel, jointly and severally. The sanctions shall be paid within 30 days of notice of this order.

Defendant to give notice.

Dated: August 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT